



# DECISION

*Fair Work Act 2009*

s.185 - Application for approval of a single-enterprise agreement

**IVF Australia Pty Ltd Trading AS IVF Australia**  
(AG2026/1648)

## **IVF AUSTRALIA NURSING ENTERPRISE AGREEMENT 2026**

Health and welfare services

DEPUTY PRESIDENT CROSS

SYDNEY, 22 JULY 2026

*Application for the approval of the IVF Australia Nursing Enterprise Agreement 2026*

[1] Pursuant to s 185 of the *Fair Work Act 2009* (**‘Act’**), an application has been made by IVF Australia Pty Ltd (**‘Applicant’**) for approval of a single enterprise agreement known as the IVF Australia Nursing Enterprise Agreement 2026 (**‘Agreement’**)

[2] The Applicant has filed written undertakings. I am satisfied that the undertakings will not cause financial detriment to any employee covered by the Agreement and will not result in substantial changes to the Agreement. The undertakings are taken to be a term of the Agreement and are annexed to the Agreement, marked **‘Annexure A’**.

[3] Subject to the undertakings referred to above, I am satisfied that each of the requirements of ss 186 – 188 and 190 of the Act as are relevant to this application for approval have been met.

[4] The Agreement contains a delegates’ rights term at clause 41 which I consider is less favourable than the delegates’ rights clause which now appears in clause 28A of the *Nurses Award 2020* (**‘Award’**). As a result, the workplace delegates’ rights term appearing in clause 28A of the Award is taken to be a term of the Agreement in accordance with s 205A of the Act.

[5] The Agreement contains a NES precedence clause found at clause 6. This clause will be relied upon in the event of any inconsistency between this Agreement and the National Employment Standards.

[6] The Australian Nursing and Midwifery Federation being a bargaining representative for the Agreement has given notice under s 183 of the Act that it wants the Agreement to cover it. In accordance with s 201(2) of the Act, I note that the Agreement covers the organisation.

[7] The Agreement is approved and, in accordance with s 54 of the Act, will operate from 29 July 2026. The nominal expiry date of the Agreement is 1 November 2027.



DEPUTY PRESIDENT

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## Annexure A

### IN THE FAIR WORK COMMISSION

**FWC Matter No.: AG2026/1648**

**Applicant: IVF Australia Pty Ltd**

**Section 185 – Application for approval of a single enterprise agreement**

### Undertaking-Section 190

I, Steven McArthur, Managing Director for IVF Australia Pty Ltd, City West Specialist Day Hospital Pty Ltd, Alexandria Specialist Day Hospital Pty Ltd and North Shore Specialist Day Hospital Pty Ltd ("the Employer") give the following undertakings with respect to the IVF Australia Pty Ltd Nursing Enterprise Agreement 2026 ("the Agreement"):

1. I have the authority given to me by the Employer to provide this undertaking in relation to the application before the Fair Work Commission.
2. The base rates of pay outlined in the Agreement for 1 July 2026 will apply from 26 June 2026 for the for the classifications outlined in the table:

|                              |          |
|------------------------------|----------|
| Assistant in Nursing         | 1st year |
| Assistant in Nursing         | 2nd year |
| Assistant in Nursing         | 4th year |
| Enrolled Nurse with notation | 1st year |
| Enrolled Nurse with notation | 2nd year |
| Enrolled Nurse with notation | 3rd year |
| Enrolled Nurse with notation | 4th year |
| Enrolled Nurse               | 1st year |
| Registered Nurse/Midwife     | 1st year |

3. The base rate of pay for the Assistant in Nursing 3<sup>rd</sup> Year will be \$34.06 from 26 June 2026.
4. These undertakings are provided on the basis of issues raised by the Fair Work Commission in the application before the Fair Work Commission.



Signature

17 July 2026

Date

# IVF AUSTRALIA

## NURSING ENTERPRISE AGREEMENT 2026

(includes City West Specialist Day Hospital, Alexandria Specialist Day Hospital and North Shore Specialist Day Hospital)

Note - In accordance with s.205A of the *Fair Work Act 2009* (Cth) the most favourable term of the delegates' rights terms in the relevant modern awards, as determined by the Fair Work Commission, is taken to be a term of the agreement. This agreement is to be read together with an undertaking given by the employer. The undertaking is also taken to be a term of this agreement. A copy of these terms can be found at the end of the agreement.

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## ENTERPRISE AGREEMENT

### 1. ARRANGEMENT

The Agreement is arranged as follows:

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2. NAME OF THE AGREEMENT

This Agreement will be called the *IVF Australia Nursing Enterprise Agreement 2026*.

3. COVERAGE AND SCOPE

This Agreement will cover:

- (i) the employing entities set out in Schedule 3; and
- (ii) Nursing Employees of the Employer as classified in Schedule 1 of this Agreement.

Application for Coverage:

- (iii) This Agreement is made under section 172 of the Act. The Employer will take the necessary steps to seek approval of this Agreement under section 186 of the Act.
- (iv) The Employer will formally advise the ANMF NSW when the Agreement is made in order for the ANMF to apply under section 183 of the Act to be covered by the Agreement.
- (v) It is the intention of this Agreement that the ANMF NSW will be covered by this Agreement.

4. DATE AND PERIOD OF OPERATION

This Agreement will commence operation from the 7<sup>th</sup> day after the Agreement is approved by the FWC and will remain in force until 1 November 2027 after the approval of this Agreement by the FWC and thereafter in accordance with the Act.

The parties to this Agreement agree that discussions will commence for a new agreement no later than six months prior to the expiry date of the Agreement.

5. POSTING OF THE AGREEMENT

A copy of this Agreement will be displayed in a conspicuous and convenient place at the workplace so as to be easily read by all Employees.

6. RELATIONSHIP TO THE NATIONAL EMPLOYMENT STANDARDS

Where this Agreement has provisions regarding matters dealt with under the NES and the provisions in the NES are more favourable to an Employee in a particular respect than the provisions in this Agreement, then the NES will prevail in that respect and the provisions dealing with that matter in this Agreement will have no effect in respect of that Employee.

7. TRANSFER OF BUSINESS

Transfer of business will be in accordance with the provisions of the Act, as amended from time to time.

A qualifying or probationary period, however titled, will not apply to a transferring Employee.

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8. DEFINITIONS

Unless the context otherwise indicates or requires the several expressions hereunder defined will have the respective meanings assigned to them:

- (i) **'the Act'** means the *Fair Work Act 2009* (Cth), as amended.
- (ii) **'the Agreement'** means this enterprise agreement called the *IVF Australia Nursing Enterprise Agreement 2026*.
- (iii) **'ANMF NSW'** means Australian Nursing and Midwifery Federation New South Wales Branch.
- (iv) **'Board'** means the Nursing and Midwifery Board of Australia and will also be taken to mean a reference to the Australian Health Practitioner Regulation Agency as appropriate/applicable.
- (v) **'Day Worker'** means a permanent, part-time or casual Employee directed by the Employer to work:
  - only at clinics which operate between 6am to 6pm, Monday to Friday (e.g. IVF Burwood); or
  - in the foreseeable future, will only work ordinary hours between 6am to 6pm Monday to Friday.
- (vi) **'Employee'** means a nurse employed by the Employer as classified in Schedule 1 of this Agreement.
- (vii) **'Employer'** means the entities set out at Schedule 3 of this Agreement.
- (viii) **'FWC'** means the Fair Work Commission or its successor.
- (ix) **'Immediate Family'** of an Employee means:
  - (a) a spouse (or former spouse), de facto partner, child, parent, grandparent, grandchild or sibling of the Employee; or
  - (b) a child, parent, grandparent, grandchild or sibling of a spouse (or former spouse) or de facto partner of the Employee.
- (x) **'de facto partner'** of an Employee:
  - (a) means a person who, although not legally married to the Employee, lives with the Employee in a relationship as a couple on a genuine domestic basis (whether the Employee and the person are of the same sex or different sexes); and
  - (b) includes a former de facto partner of the Employee.
- (xi) **'NES'** means the National Employment Standards, as contained in the Act.
- (xii) **'Ordinary Rate of Pay'** means the rate of pay set out in Appendix 1 as applicable to an Employee, as adjusted in accordance with clause 11 but does not include overtime, penalty rates, allowances, loadings, shift penalties, incentives, bonuses and other ancillary payments of a like nature.



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- (xiii) **‘Registered Nurse’** for the purposes of this Agreement includes registered nurses and registered midwives.
- (xiv) **‘Service’**, for the purpose of Appendix 1, means service before or after the commencement of this Agreement in New South Wales or elsewhere as a Registered Nurse, Enrolled Nurse or Assistant in Nursing, as the case may be.
- (xv) **‘Shift worker’** means a permanent, part-time or casual Employee directed by the Employer to work:
- at any clinic which is open for normal business hours outside of 6am to 6pm, Monday to Friday (e.g. on a Saturday) (e.g. IVF Alexandria clinic); and
  - ordinary hours outside 6am to 6pm, Monday to Friday any time in the foreseeable future.

## 9. CONSULTATION REGARDING CHANGE

### *Application*

- (i) This term applies if the Employer:
- (a) has made a definite decision to introduce a major change to production, program, organisation, structure or technology that is likely to have a significant effect on Employees to which this Agreement applies; or
  - (b) proposes to introduce a change to the regular roster or ordinary hours of work of Employees.

### *Consultation in relation to major workplace change*

- (ii) For a major change referred to in subclause (i)(a):
- (a) the Employer must notify the relevant Employees of the decision to introduce the major change; and
  - (b) subclauses (iii) to (ix) apply.
- (iii) The relevant Employee or Employees may advise the Employer that a person or employee organisation is their representative for the purposes of the procedures in this clause in relation to a major workplace change.
- (iv) If:
- (a) a relevant Employee, or the relevant Employees, advise the Employer that a person or employee organisation is their representative for the purposes of consultation; and
  - (b) the Employee or Employees advise the Employer of the identity of the representative;

the Employer must recognise the representative.

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- (v) The Employer must notify the relevant Employees and their representatives (if any) of the decision to introduce the change.
  - (vi) As soon as practicable after making its decision, the Employer must:
    - (a) consult with the relevant Employees and their representatives (if any), including by discussing with them:
      - (1) the introduction of the change; and
      - (2) the effect the change is likely to have on the Employees; and
      - (3) measures to avoid or reduce any adverse effect of the change on the Employees; and
    - (b) for the purposes of the consultation - provide, in writing, to the relevant Employees and their representatives (if any):
      - (1) all relevant information about the change including the nature of the change proposed; and
      - (2) the reasons or justification for the change; and
      - (3) information about the expected effects of the change on the Employees; and
      - (4) any other matters likely to affect the Employees.
  - (vii) However, the Employer is not required to disclose confidential or commercially sensitive information to the relevant Employees or their representatives (if any).
  - (viii) The Employer must give prompt and genuine consideration to matters raised about the major change by the relevant Employees and their representatives (if any).
  - (ix) The Employer will take reasonable steps to communicate the outcome of the consultation process including the consideration that was given to matters raised about the major workplace change by the relevant Employees and their representatives (if any).
  - (x) If a term in this Agreement provides for the introduction of a major workplace change in relation to the enterprise of the Employer, the requirements to consult contained in clauses (iii) to (ix) are taken not to apply.
  - (xi) In this term, a major workplace change is **“likely to have a significant effect on employees”** if it results in:
    - (a) the termination of the employment of Employees; or
    - (b) major change in the composition, operation or size of the Employer’s workforce or to the skills required of Employees; or
    - (c) the loss of, or reduction in, job or promotion opportunities; or
    - (d) the loss of, or reduction in, job tenure or job security; or
    - (e) the alteration of hours of work; or
    - (f) the need for Employees to be retrained or transferred to other work or
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locations; or

- (g) job restructuring.

*Consultation in relation to change to regular roster or ordinary hours of work*

- (xii) For a change referred to in subclause (i)(b):

(a) the Employer must notify the relevant Employees and their representatives (if any) in writing of the proposed change; and

(b) subclauses (xiii) to (xviii) apply.

- (xiii) The relevant Employee or Employees may advise the Employer that a person or employee organisation is their representative for the purposes of the procedures in this clause in relation to changes to regular rosters or ordinary hours of work.

- (xiv) If:

(a) a relevant Employee, or the relevant Employees, advise the Employer that a person or employee organisation is their representative for the purposes of consultation; and

(b) the Employee or Employees advise the Employer of the identity of the representative;

the Employer must recognise the representative.

- (xv) As soon as practicable after proposing to introduce the change, the Employer must:

(a) consult with the relevant Employees and their representatives (if any) about the introduction of the change, including by discussing the change with them; and

(b) for the purposes of the consultation - provide to the relevant Employees and their representatives (if any):

(1) all relevant information about the change, including the nature and expected duration of the change; and

(2) information about what the Employer reasonably believes will be the effects of the change on the Employees (including any effect on the Employee's remuneration); and

(3) information about any other matters that the Employer reasonably believes are likely to affect the Employees; and

(c) invite the relevant Employees and their representatives (if any) to give their views about the impact of the change (including any impact in relation to their family or caring responsibilities).

- (xvi) However, the Employer is not required to disclose confidential or commercially sensitive information to the relevant Employees or their representatives (if any).

- (xvii) The Employer must give prompt and genuine consideration to matters raised about
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the change by the relevant Employees or their representatives (if any).

- (xviii) The Employer will take reasonable steps to communicate the outcome of the consultation process including the consideration that was given to matters raised about the change to the regular roster or ordinary hours of work of Employees by the relevant Employees and their representatives (if any).

*Definition*

- (xix) In this term, “**relevant Employees**” means the Employees who may be affected by a change referred to in subclause (i).

10. DISPUTE RESOLUTION PROCEDURE

- (i) In the event of a dispute in relation to a matter arising under this Agreement or the NES, in the first instance, the parties will attempt to resolve the matter at the workplace by discussions between the Employee or Employees concerned and the relevant supervisor and, if such discussions do not resolve the dispute, by discussions between the Employee or Employees concerned and more senior levels of management as appropriate.
- (ii) A party to the dispute may appoint another person, organisation or association to accompany or represent them in relation to the dispute and for the purposes of this procedure.
- (iii) If a dispute in relation to a matter arising under the Agreement or the NES is unable to be resolved at the workplace, and all agreed steps for resolving it have been taken, the dispute may be referred to the FWC for resolution by conciliation and, where the matter in dispute remains unresolved, arbitration.
- (iv) It is a term of this Agreement that while the dispute resolution procedure is being conducted, work will continue normally unless an Employee has a reasonable concern about an imminent risk to their health or safety.

11. WAGES

- (i) The minimum hourly rates of pay will be as set out in Table 1 – Wage Rate Schedule of Appendix 1. The parties have agreed that the following wage increases will apply:
- (a) 5% backdated to the beginning of the first full pay period that commenced on or after 1 July 2025;
- (b) 4.0% from the beginning of the first full pay period on or after 1 July 2026;  
and
- (c) 4.0% from the beginning of the first full pay period on or after 1 July 2027.
- (ii) In the first full pay period commencing on or after a successful “yes” vote by Employees, Employees will be paid a \$1,000 (gross) sign on bonus.
- (iii) An Enrolled Nurse who is endorsed to administer medication will be classified and paid

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as an Enrolled Nurse – Medication Endorsement from the commencement of the first full pay period following the issuing by the Board of their Letter of Endorsement to Administer Medication or Authority to Practice Certificate, Enrolled Nurse including Endorsement to Administer Medication, whichever is issued earlier.

Provided that an Enrolled Nurse – Medication Endorsement 1<sup>st</sup> year will not progress to Enrolled Nurse – Medication Endorsement 2<sup>nd</sup> year until completion of twelve months' service at the 1<sup>st</sup> year rate (or for part time Employees the full time equivalent of 1,982 hours), and to the 3<sup>rd</sup> year rate until completion of twelve months' service at the 2<sup>nd</sup> year rate (or for part time Employees the full time equivalent of 1,982 hours), and so on throughout the scale.

- (iv) An Enrolled Nurse graduating as a Registered Nurse will commence on the 2nd Year pay point of the Registered Nurse pay scale.
- (v) An Enrolled Nurse with a Diploma level qualification will commence on the 2nd Year pay point of the Enrolled Nurse - Medication endorsed pay scale.
- (vi) An Enrolled Nurse who upgrades their enrolment qualifications to Diploma level will automatically advance one increment within their relevant classification.
- (vii) An Endorsed Enrolled Nurse graduating as a Registered Nurse will commence on the 3rd Year pay point of the Registered Nurse pay scale.
- (viii) Any further wage increase will be at the discretion of the Employer, unless the rate of pay falls below the Modern Award rate, in such circumstances the rate of pay will default to the minimum rate prescribed in accordance with the relevant Modern Award rate.

#### Recognition of service

- (ix) For the purposes of identifying an Employee's service for the purposes of the definition in clause 8(xiv) (which deals with service for the purposes of Appendix A) the following provisions will apply:
  - (a) An Employee has three months after the commencement of their employment to provide evidence of service, as defined in clause 8(xiv) Definitions, to the Employer.
  - (b) Until the Employee furnishes the evidence contemplated in (a) above, the Employee will be paid at the level for which evidence has been provided.
  - (c) If within three months of commencing employment an Employee provides evidence of previous service, the Employer will pay the Employee at the rate supported by the additional evidence with effect from the commencement of the employment.
  - (d) If an Employee provides evidence of other previous service after the three months period, the nurse will be paid the rate supported by the additional evidence but only from the date the evidence was provided to the Employer.
  - (e) An Employee who is working as a nurse for more than one organisation will notify the Employer within one month of the end of each quarter of their

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hours of service worked with the other employer/s in the last quarter.

- (f) An Employee who is entitled to progress to the next year of service (by reason of hours worked with another employer/s) at a particular date must provide evidence of that entitlement within three months of the entitlement arising.
- (g) If that proof is provided, the nurse will be paid at the higher rate as and from the particular date. If the evidence provided is outside that three months, the Employee will be paid at the higher rate only from the date the proof is provided to the Employer.
- (h) For the purposes of this clause, where other documentary evidence is not available, evidence may take the form of a statutory declaration.

## 12. SUPERANNUATION

- (i) The subject of superannuation is dealt with extensively by legislation including the *Superannuation Guarantee (Administration) Act 1992*, the *Superannuation Guarantee Charge Act 1992*, the *Superannuation Industry (Supervision) Act 1993* and the *Superannuation (Resolution of Complaints) Act 1993*. This legislation, as varied from time to time, governs the superannuation rights and obligations of the parties.
- (ii) **‘The Fund’** for the purpose of this Agreement will mean:
  - (a) Health Employees’ Superannuation Trust of Australia (**‘HESTA’**) established and governed by a trust deed dated 23 July 1987, as may be amended from time to time, and includes any superannuation scheme which may be made in succession thereto;
  - (b) an existing fund of the Employee; or
  - (c) any other complying superannuation fund which is nominated by the Employee.
- (iii) In addition to the Employer’s statutory contributions to the Fund, an Employee may make additional contributions from their salary, and on receiving written authorisation from the Employee, the Employer must commence making contributions to the Fund in accordance with the *Superannuation Guarantee Charge Act 1992*.
- (iv) Upon commencement of employment, the Employer will provide each Employee with a membership form for their preferred fund and will forward the completed membership form for the Employee’s choice of fund within 28 days. In the event that the Employee has not completed an application form within 28 days, the Employer will forward contributions to any existing fund of the Employee. If the Employee does not have a fund the Employer will forward contributions to HESTA (**‘Default fund’**). The Default fund offers a MySuper product.
- (v) Superannuation fund payments will be made in accordance with trust fund deeds and applicable legislation.
- (vi) Where an Employee salary packages their wages in accordance with this Agreement, superannuation will be paid on the pre-packaged wages.

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13. HOURS OF WORK

Day Workers

- (i) Ordinary hours of work for Day Workers will be:
  - (a) will not exceed an average of 38 per week;
  - (b) will be between 6:00am and 6:00pm Monday to Friday (for Day Workers);
  - (c) will be on a continuous basis except for meal breaks; and
  - (d) will not involve more than one shift per day without the payment of overtime as prescribed in the overtime clause of this Agreement.
- (ii) The arrangement of the 38 hour week may be any one of the following:
  - (a) by Employees working less than 8 ordinary hours each day; or
  - (b) by Employees working less than 8 ordinary hours on one or more days each week; or
  - (c) by Employees working less than a 10 hour day, four (4) days per week; or
  - (d) by Employees working a combination of hours, up to a maximum of 10 hours in a day, working 38 hours per week; or
  - (e) circumstances may arise where different method of implementation of a 38 hour week apply to various groups or sections of Employees.
  - (f) For registered nurses or enrolled nurses who participate in a 12 hour shift roster Schedule 2 applies.
- (iii) The arrangement of the 38 hour week may be varied by agreement between the Employer and the Employee(s) concerned.
- (iv) Where agreement cannot be reached, the Dispute Resolution Procedure as provided for under this Agreement will apply.

Shift Workers

- (v) Where an Employee is a Shift Worker the Employee's ordinary hours will not exceed:
  - (a) 38 hours per week; or
  - (b) 76 hours per fortnight; or
  - (c) Except at regular changeover of shifts an Employee will not be required to work more than one shift in each twenty-four hours without payment of overtime as prescribed in clause 18 - Overtime, of this Agreement.
  - (d) The ordinary hours of shift workers will be worked continuously except for meal breaks.

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(vi) Shift Penalties

- (a) Employees working afternoon or night shift will be paid the following percentages in addition to the Ordinary Rate of Pay for such shift provided that those who work less than 38 hours per week will only be entitled to the additional rates where their shifts commence prior to 6.00 am or finish subsequent to 6.00 pm.

Afternoon shift commencing at 10.00 am and before 1.00 pm - 10%

Afternoon shift commencing at 1.00 pm and before 6.00 pm - 12.5%

Night shift commencing at 6.00 pm and before 4.00 am – 20%

Night shift commencing at 4.00 am and before 6.00 am - 10%

- (b) For the purposes of this clause, day, afternoon and night shifts will be defined as follows:

**‘Day Shift’** means a shift which commences at or after 6.00am and before 10.00am.

**‘Afternoon shift’** means a shift which commences at or after 10.00am and before 6.00pm

**‘Night Shift’** means a shift which commences at or after 6.00pm and before 6.00am on the day following.

(vii) Breaks between shifts (except as outlined in Schedule 2 for 12 hour shifts)

- (a) An Employee will be allowed a rest break of 10 hours between the completion of one ordinary work period or shift and the commencement of another work period or shift. By mutual agreement between the Employer and Employee, the 10 hour rest break may be reduced to 8 hours.
- (b) If, on the instruction of the Employer, an Employee resumes or continues to work without having had 10 consecutive hours off duty (or 8 as agreed) they will be paid 200% of their Ordinary Rate of Pay until released from duty for such period.

14. MEAL HOURS AND MEAL ALLOWANCES

- (i) Each Employee will be allowed an unpaid break of not less than thirty minutes and not more than sixty minutes for each meal occurring on duty. Schedule 2 provides for specific arrangements in regard to 12 hour shifts.
- (ii) Where practicable, Employees will not be required to work more than 5 hours without a meal break. Provided that where practicable an Employee engaged to work for 6 hours or less in any one shift may elect not to take a meal break as otherwise provided for by this subclause without penalty to the Employer. The term ‘where practicable’ encompasses regard being paid to the operational requirements of the Employer.



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- (iii) Two separate paid ten-minute rest intervals (in addition to meal breaks) will be allowed each Employee on duty during each ordinary shift of 8 or 10 hours as the case may be. Subject to agreement between the Employer and the Employee, such paid rest intervals may alternatively be taken as one twenty-minute paid rest interval, or by one 10-minute paid rest interval with the Employee allowed to proceed off duty 10 minutes before the completion of the normal shift finishing time without deduction in pay. Such intervals will count as paid working time.
  - (iv) An Employee required to work approved overtime for more than one and a half hours after their usual ceasing time of duty will be supplied with a meal, free of cost, or if this is not possible, the Employee will be paid an allowance in accordance with Appendix 1.

15. PART TIME EMPLOYMENT

- (i) A permanent part-time Employee is one who is permanently appointed by the Employer to work a specific number of ordinary hours which are less than those prescribed for a full-time Employee. Before commencing part-time employment, the Employer and the Employee will agree the guaranteed number of hours to be worked and the rostering arrangements which will apply to those hours and with the agreement to be recorded in writing which may be via electronic means. The hours of work can be changed by agreement with the Employee in writing which may be via electronic means.
- (ii) Employees engaged under this clause will be paid the appropriate Ordinary Rate of Pay prescribed in Appendix 1, with a minimum payment of two hours for each start (except for professional development time which is paid ordinary time for time worked). Employees will not be entitled to an additional day off or part thereof as prescribed by subclause (ii)(e) of Clause 13 - Hours of Work.
- (iii) The provisions of clause 22 - Annual Leave, and clause 23 - Annual Leave Loading, of this Agreement will apply to Employees engaged under this clause upon the same ratio as the number of hours worked in each week bears to 38.
- (iv) Ordinary pay, for the purposes of personal/carer's leave and annual leave, will be based on their hours rostered or the average hours worked over the prior 12 months whichever is greater.
- (v) Employees engaged in accordance with this clause will be entitled to all other benefits of this Agreement not otherwise expressly provided for herein in the same proportion as their ordinary hours of work bear to full-time hours.
- (vi) A part time Employee will be engaged and entitled to a minimum payment of two hours.

16. CASUAL EMPLOYMENT

- (i) A casual Employee means an Employee who is engaged and paid by the hour.
- (ii) A casual Employee working ordinary hours will be paid by the appropriate Ordinary Rate of Pay plus 25%. A casual Employee will be paid shift penalties calculated on the Ordinary Rate of Pay excluding the casual loading with the casual loading component then added to the penalty rate of pay.

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- (iii) A casual Employee will be entitled to Saturday, Sunday and Public Holiday penalties in accordance with clause 20(i)(a) and Overtime in accordance with clause 18(vi).
  - (iv) A casual Employee will be entitled to a minimum payment of three hours.
  - (v) Casual Conversion
    - (a) A casual Employee may become a permanent Employee (either part-time or full time) in accordance with the NES. The full detail can be found in the Act in sections 66A-66MA.

#### 17. TELEPHONE ON CALL

- (i) Where an Employee is required to be on call, the applicable allowance set out at Appendix 1 will be payable for such on call period. The telephone on call service is intended for patients that are experiencing an emergency in relation to their treatment outside of normal business hours.
- (ii) Where a staff member is on call, they may be required to undertake telephone attendances during such on-call period. The applicable on call allowance compensates the Employee for undertaking telephone attendances during the on call period, up to the capped time as set out in the below table:

| On call Period                                                                 | Capped time for undertaking telephone attendances |
|--------------------------------------------------------------------------------|---------------------------------------------------|
| Monday to Friday (5:00pm - 9:00pm)                                             | Up to 1.5 hours                                   |
| Saturday (2:00pm - 9:00pm)                                                     | Up to 2 hours                                     |
| Sunday (12:00pm - 9:00pm)                                                      | Up to 2 hours                                     |
| Public Holiday Week Day (5:00pm - 9:00pm)                                      | Up to 2 hours                                     |
| Public Holiday Weekend (12:00pm - 9:00pm)                                      | Up to 2 hours                                     |
| Public Holiday (Boxing Day, Christmas Day and New Years Day) (8:00am – 9:00pm) | Up to 2 hours                                     |

- (iii) Where such telephone attendances exceed the capped time set out above, the Employee will be paid at the relevant overtime penalty rate for such time in excess of the capped time.
- (iv) For clarity “telephone attendance” in the preceding sub-clause includes all time taken to deal with contact from patients while on-call. It includes the time directly communicating with patients, any preparation or follow-up required and all related record keeping (for example, logging the call, noting the medical records system and making necessary follow-up appointments etc.). Communication with patients can be through a range of electronic means – for example, phone call, text message, email and emerging technologies etc.

#### 18. OVERTIME

- (i) Where the Employee (full time, part time and casual) is required to work in excess of the following hours:
  - (a) Hours worked in excess of their rostered shift on weekdays, where they are rostered for 8 hours or more (inclusive of meal breaks)

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For example:

- If rostered for a shift of less than 8 hours (e.g 6 hours), overtime will not apply until you have worked beyond 8 hours.
- If rostered for a 9 hour shift, overtime would apply beyond 9 hours.
- If rostered for a 10 hour shift, overtime would apply beyond 10 hours.

- (b) 12 hours if rostered for a 12 hour shift (see Schedule 2);
- (c) 76 hours in a fortnight;
- (d) 152 hours per four week period; or
- (e) Outside the hours of 6:00am to 6:00pm Monday to Friday (for a day worker);

the Employee will be paid as follows:

- (f) Monday to Friday (inclusive): time and a half for the first two hours and double time thereafter;
  - (g) Saturday and Sunday: double time; and
  - (h) Public Holidays: double time and a half.
- (ii) For the purpose of calculating overtime, each day or shift will stand alone. An Employee working overtime past midnight on Sundays or public holidays is not required to recommence the overtime at midnight; they will not be required to work the first two hours of overtime at time and a half.
  - (iii) An Employee is to attain approval from their relevant manager prior to overtime being worked. All overtime must be authorised by the relevant manager.
  - (iv) Subject to the following subclauses, an Employer may require an Employee to work reasonable overtime at overtime rates or as otherwise provided for under this Agreement:
    - (a) An Employee may refuse to work overtime in circumstances where working of such overtime would result in the Employee working hours which are unreasonable.
    - (b) For the purpose of this subclause, what is reasonable or otherwise will be determined having regard to:
      - (1) any risk to the Employee's health and safety;
      - (2) the Employee's personal circumstances including any family or carer responsibilities;
      - (3) the needs of the workplace or enterprise;
      - (4) the notice (if any) given by the Employer of the overtime and by the

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Employee of their intention to refuse it; and

(5) any other relevant matter.

(v) Time Off in Lieu of Payment of Overtime

(a) An Employee may elect, with the agreement of the Employer, to take time off in lieu of payment for overtime at a time or times agreed with the Employer within 6 months of the election. Any unused time off in lieu accrued in accordance with this clause will be paid to the Employee on termination.

(b) Overtime taken as time off during ordinary time hours will be taken at the ordinary time rate, that is, an hour for each hour worked.

(c) If, having elected to take time off in lieu in accordance with paragraph (a) of this subclause, the leave is not taken for whatever reason, payment for time accrued at the applicable overtime penalty rate when worked will be made:

(1) at the expiry of the 6 month period; or

(2) on termination of employment for whatever reason; or

(3) at the request of the Employee at any time including within the 6 month period (with payment to be made in the next pay period following the request).

(d) Where no election is made in accordance with paragraph (a), the Employee will be paid overtime rates in accordance with this Agreement.

(vi) All overtime worked by a casual Employee will be paid as prescribed in subclause (i) in lieu of payment of the casual loading.

Rest period after overtime

(vii) When overtime work is necessary, it will, wherever reasonably practicable, be so arranged that Employees have at least 10 consecutive hours off duty between the work of successive days or shifts, including overtime.

(viii) An Employee, other than a casual Employee, who works so much overtime between the termination of their ordinary work on one day and the commencement of their ordinary work on the next day, that they have not had at least 10 consecutive hours off duty between those times, will be released after completion of such overtime, until they have had 10 consecutive hours off duty without loss of pay for ordinary working time occurring during such absence.

(ix) If, on the instruction of the Employer, an Employee resumes or continues to work without having had 10 consecutive hours off duty, they will be paid at the rate of double time until released from duty for such period. The Employee will then be entitled to be absent until they have had 10 consecutive hours off duty without loss of pay for rostered ordinary hours occurring during the absence.

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Staff meetings

- (x) Up to a maximum of 12 times each calendar year, Employees may be requested to attend a staff meeting of a duration no longer than 90 minutes at a time that is not necessarily continuous with their rostered hours. Employees may attend via telephone or Teams.
- (xi) If the Employee consents to attend the meeting, they will be paid only for the duration of the meeting and the provisions requiring payment for minimum periods of engagement will not apply.

19. CONTINUING EDUCATION ALLOWANCE

- (i) An Employee who is:
  - (a) employed in the classification of Registered Nurse (years 1 to 8), Clinical Nurse Specialist or Unit Nurse Manager and above
  - (b) who satisfies the Employer that they are engaged in clinical work for more than 50% of their time
  - (c) who holds a continuing education qualification in a clinical field, in addition to the qualification leading to registration,will be paid a continuing education allowance, subject to the following conditions set out below:
  - (a) the allowance is only payable where the qualification is accepted by the Employer to be directly relevant to the competency and skills used by the nurse in the duties of the position;
  - (b) an Employee holding more than one relevant qualification is only entitled to one allowance, being the allowance of the highest monetary value;
  - (c) the Employee claiming entitlement to a qualification allowance must provide evidence to the Employer that they hold that qualification.
- (ii) Subject to the provisions in subclause (i) of this clause, an Employee who holds a post-registration hospital certificate as recognised by the Employer and relevant to the Employee's current role will be paid a weekly allowance as set out in Appendix 1.
- (iii) Subject to the provisions in subclause (i) of this clause, an Employee who holds a post-graduate certificate will be paid a weekly allowance as set out in Appendix 1.
- (iv) Subject to the provisions in subclause (i) of this clause, an Employee who holds a post-graduate diploma or degree (other than an undergraduate nursing degree) will be paid a weekly allowance as set out in Appendix 1.
- (v) Subject to the provisions in subclause (i) of this clause, an Employee who holds a masters degree or doctorate will be paid a weekly allowance as set out in Appendix 1.

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- (vi) An enrolled nurse, who holds a relevant Certificate IV or equivalent continuing education qualification in a clinical field, or Advanced Diploma of Nursing (Enrolled/Division 2 Nursing) in addition to the qualification leading to enrolment, will be paid a continuing education allowance, subject to the following conditions set out below:
    - (a) the allowance is only payable where the qualification is accepted by the Employer to be directly relevant to the competency and skills used by the enrolled nurse in the duties of the position;
    - (b) an Employee holding more than one relevant qualification is only entitled to one allowance, being the allowance of the highest monetary value;
    - (c) the Employee claiming entitlement to a qualification allowance must provide evidence to the Employer that they hold that qualification.
  - (vii) Subject to the provisions in subclause (vi) of this clause, an enrolled nurse who holds a Certificate IV qualification will be paid a weekly allowance as set out in Appendix 1
  - (viii) Subject to the provisions in subclause (vi) of this clause, an enrolled nurse who holds an Advanced Diploma of Nursing (Enrolled/Division 2 Nursing) qualification will be paid a weekly allowance as set out in Appendix 1.
  - (ix) A Clinical Nurse Educator who holds a post graduate diploma, degree, Masters or Doctorate in education or a clinical field in addition to the qualification leading to registration will be paid a continuing education allowance, subject to the following conditions set out below:
    - (a) the allowance is only payable where the qualification is accepted by the Employer to be directly relevant to the competency and skills used by the registered nurse in the duties of the position;
    - (b) an Employee holding more than one relevant qualification is only entitled to one allowance, being the allowance of the highest monetary value;
    - (c) the Employee claiming entitlement to a qualification allowance must provide evidence to the Employer that they hold that qualification.
  - (x) Subject to the provisions in subclause (ix) of this clause, a Clinical Nurse Educator who holds a post graduate diploma, degree, Masters or Doctorate in education or a clinical field, or a who holds a post graduate diploma, degree, Masters or Doctorate in a clinical field, will be paid the relevant allowance as set out in Appendix 1 (Post Graduate Diploma or Degree) or the allowance set out in Appendix 1 (Masters Degree or Doctorate) per week.
  - (xi) The above allowances are not to be included in the Employee's Ordinary Rate of Pay. The allowances are payable during periods of paid leave taken by an Employee.
  - (xii) Where a dispute arises concerning the eligibility for payment of a Continuing Education Allowance, this matter should be dealt with under the Dispute Resolution Procedure in clause 10 of this Agreement.
  - (xiii) The rates prescribed in this clause will be increased in accordance with the percentage
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increases prescribed at clause 11 of this Agreement.

- (xiv) Subject to the terms of this clause, payment of a continuing education allowance will be on the first full pay period on or after the date evidence of such qualification is provided by the Employee to the Employer.

**Example:** Examples of types of qualifications which may trigger this allowance include but are not limited to Master of Nursing and Certified Midwife (Certificate, Diploma and Masters) and Masters /Certificates in Fertility or Reproductive Medicine.

## 20. SATURDAY, SUNDAY AND HOLIDAY RATES OF PAY

### (i) Shift Work

- (a) Employees who are required to work ordinary hours on a Saturday, Sunday or public holiday will be paid for such time worked: `

- (1) on Saturdays at the rate of time and a half (150%);
- (2) on Sundays at the rate of time and three quarters (175%); and
- (3) on public holidays at the rate of double time and a half (250%).

This payment will be in lieu of any percentage addition by reason of the fact that an Employee is a casual Employee.

- (b) Where shifts commence between 11.00pm and midnight on a Sunday or public holiday, the time so worked before midnight will not entitle the Employee to the Sunday or public holiday rate.

- (ii) Employees required to work on Saturdays, Sundays or public holidays will be paid for a minimum of three hours' work.

## 21. PUBLIC HOLIDAYS

- (i) Employees, other than casual Employees, will be entitled to be absent on the following public holidays without loss of pay: New Year's Day, Australia Day, Good Friday, Easter Saturday, Easter Sunday, Easter Monday, Anzac Day, King's Birthday, Labour Day, Christmas Day, Boxing Day, or such other day as is generally observed in the locality as a substitute for any of the said days, respectively, together with all proclaimed public holidays throughout the State.

- (ii) In addition to the holidays specified in this clause, there will be added one other day to be observed as a public holiday which will be observed annually during the period between Christmas and New Year. The Employer will notify Employees of the relevant day to be observed as the public holiday prior to 1 July of each year.

- (iii) For the purposes of Clause 21(ii), the one day holiday observed between Christmas and New Year will be recognised on the next weekday after Boxing Day except where "additional day(s)" are gazetted in which case the one day public holiday will be recognised on the next weekday after the additional public holidays.

- (iv) Every Employee, other than a casual Employee, entitled to be absent on a day that is a public holiday specified herein will be deemed to have worked in the week in which the

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public holiday falls the number of ordinary hours that the Employee would have worked had the day not been a holiday.

- (v) In determining whether a part-time Employee who works a rotating roster (i.e. a roster whereby the days on which the Employee's ordinary hours of work are worked, vary between rosters) is entitled to receive payment for a particular public holiday not worked, the Employer will determine this by reviewing the roster pattern of the individual over the preceding twelve months. If the rosters show that the Employee has worked 50% or more on the days on which a particular public holiday falls, the Employee will be entitled to receive payment for that public holiday at the Ordinary Rate of Pay based on the average hours worked on that particular day over the preceding 12 months. This clause will not apply to Employees who have less than 6 months service. This clause will not apply where an Employee has had a variation to their contract of employment which excludes that Employee from working on the day on which a public holiday falls.

Provided that any Employee whose roster is changed with the intent of avoiding or reducing payment due or the benefit applicable under this clause and who would, but for the change of roster, have been entitled otherwise to a payment or benefit for a public holiday or holidays will be paid for such holiday or holidays as if the Employee's roster had not been changed.

- (vi) Where a Day Hospital employee is rostered to work on a public holiday, and their shift is cancelled 72 hours (or less) before the shift is due to start, they will be paid a one-off inconvenience payment of \$100.

## 22. ANNUAL LEAVE

- (i) Permanent Employees will be entitled to annual Leave in accordance with the NES and will be paid for annual leave based on the Ordinary Rate of Pay. The entitlement to annual leave is as follows:
- (a) 5 weeks for all full time and part time Employees.
  - (b) Additional leave for shift workers in accordance with sub-clauses 22(vii) and (viii);
  - (c) Such annual leave accrues progressively during a year of service according to the Employee's ordinary hours of work and accumulates from year to year.
- (ii) Paid annual leave must be taken for a period agreed between the Employer and an Employee. The Employer must not unreasonably refuse to agree to a request by an Employee to take paid annual leave. Notwithstanding the provisions of this subclause, an Employer may direct an Employee to take a period of annual leave in accordance with subclauses (ix) and (x).
- (iii) The Employer and Employee may agree in writing to an Employee taking a period of paid annual leave before the Employee has accrued an entitlement to the leave. The agreement must be in writing, signed by both parties, and specify the amount of leave to be taken in advance and the date on which the leave is to commence. If on termination of the Employee's employment, the Employee has not accrued an entitlement to all of a period of paid annual leave already taken in accordance with this subclause, the Employer may deduct from any money due to the Employee on



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termination an amount equal to the amount that was paid to the Employee in respect of any part of the period of annual leave taken in advance to which an entitlement has not been accrued subject to an Employee's written agreement.

- (iv) An Employee going on leave, will be paid for the period of leave at the Ordinary Rate of Pay to which they are entitled under this Agreement on a fortnightly basis.
- (v) Except as provided for in subclause (vi) and (viii) of this clause, payment will not be made nor accepted in lieu of annual leave.
- (vi) On the termination of their employment, an Employee will be paid their untaken annual leave and pro rata leave.
- (vii) In addition to the annual leave prescribed at 22(i), consistent with the NES, a shiftworker (as defined in this clause) is entitled to an additional week of annual leave on the same terms and conditions. For this, and for the purpose of the NES, a shiftworker is defined as an Employee who:
  - (a) is regularly rostered over seven days of the week; and
  - (b) regularly works on weekends.

For the purposes of this clause, an Employee is entitled to the additional week of leave if they work 10 or more weekends in the 12-month accrual period (being the 12 months from September to September). An Employee will have worked a weekend for the purpose of the 10 weekend calculation when they work one day on a weekend and/or a public holiday immediately adjacent to a Saturday or Sunday. For avoidance of doubt, where an Employee works a Saturday and a Sunday on one weekend, this will count as 2 weekends for the purposes of the calculation. Where an Employee works on a public holiday adjacent to this or another weekend it will count as an additional weekend. For the further avoidance of doubt, where an Employee works on Saturday, Sunday and a public holiday Monday this will count as 3 weekends for the purposes of the calculation.

- (viii) If an Employee becomes entitled to the additional leave in clause (vii) above, the Employee will also be entitled to the below additional annual leave if they work the number of specified weekends (as defined in (vii) above) during the year in which their annual leave accrues, as follows:

| <b>Additional annual leave to be added to an Employee's accrued entitlement</b> |            |
|---------------------------------------------------------------------------------|------------|
| Employee who works 15 or more but less than 20 weekends                         | 15.2 hours |
| Employee who works 20 or more weekends                                          | 7.6 hours  |

- (ix) Cashing out an amount of annual leave
  - (a) Upon receipt of a written request by an Employee, the Employer may, in a separate written agreement, authorise the Employee to cash out an amount of annual leave.

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- (1) Paid annual leave must not be cashed out if the cashing out would result in the Employee's remaining accrued entitlement to paid annual leave being less than 4 weeks; and
  - (2) Where an Employee forgoes an entitlement to take an amount of annual leave, the Employee must be paid at least the full amount that would have been payable to the Employee had the Employee taken the leave that the Employee has forgone.

(x) Taking of leave

- (a) Where an Employee has accrued more than 10 weeks' paid annual leave (or 12 weeks' paid annual leave for shift workers) (as defined at clause 22(vii)) such Employee has an excessive leave accrual (**'Excess Leave'**) and the Employer may direct an Employee to take a period of annual leave in accordance with this subclause.
  - (1) In the circumstances of Excess Leave, the Employer may direct the Employee to take a period of annual leave (**'Direction'**) by giving not less than 8 weeks and not more than 12 months' notice to the Employee (**'Notice'**), subject to the following:
    - A. the Employee will first be given a reasonable opportunity to submit a plan to reduce their total annual leave accrued balance to not more than six weeks within a period of six months (**'leave reduction plan'**);
    - B. the Employer will not unreasonably refuse to agree to an Employee's annual leave reduction plan which includes saving leave for an extended vacation within 12 months of the date of agreement to the leave reduction plan. The agreement is to be in writing and signed by both the Employer and Employee;
    - C. the Direction cannot result in the Employee being directed to reduce the accrued leave to less than six weeks and the Employee cannot be directed to take any period of annual leave of less than one week.

(xi) Annual Shut Down

- (a) It is the Employer's normal practice to shut down part or all of its operations for the period between Christmas and New Year or a period nominated by the Employer over this period.
- (b) This period will not normally exceed 12 business days (excluding public holidays). However, in the case of Wollongong TFC, the period will not normally exceed 15 business days (excluding public holidays).
- (c) The Employer will provide a minimum of two months' notice in writing of the temporary annual closure to Employees (excepting Employees employed after the notice is given). Options for the shutdown period will be discussed with the relevant Employees.

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- (d) Full time and part time Employees will be required to take accrued annual leave or accrued time off in lieu during this period. Alternatively, the Employee may elect at their option to take leave without pay during this period.
  - (e) Notwithstanding the provisions at Clause 22(ii), the provisions set out for the annual shut down provisions will apply.

23. ANNUAL LEAVE LOADING

- (i) Annual leave loading is to be calculated at the rate of 17.5% of the appropriate Ordinary Rate of Pay prescribed by this Agreement for the classification in which the Employee was employed immediately before commencing their annual leave.
- (ii) No loading is payable to an Employee who takes an annual leave wholly or partly in advance in accordance with subclause (iii) of clause 22 - the Annual Leave clause of this Agreement, provided that, if the employment of such an Employee continues until the day when they would have become entitled to the annual leave, the loading then becomes payable in respect of the period of such leave and is calculated in accordance with subclause (i) of this clause applying to the Agreement rates payable on that day.

24. LONG SERVICE LEAVE

An Employee's entitlement to long service leave will be in accordance with the *Long Service Leave Act 1955* (NSW) as amended.

25. PERSONAL/CARER'S LEAVE

- (i) Amount of paid personal leave

An Employee, other than a casual Employee, is entitled to accrue 10 days of paid personal/carer's leave per annum in accordance with the NES. Under the NES, an employee's entitlement to paid personal leave accrues progressively during a year of service according to the employee's ordinary hours of work and accumulates from year to year. Payment for personal leave will be in accordance with the employee's rostered ordinary hours for the day.

- (ii) Personal leave for personal injury or sickness

- (a) An Employee is entitled to use the full amount of their personal leave entitlement including accrued leave for the purposes of personal illness or injury affecting the Employee. Provided that such illness/ injury of two or more consecutive days is certified by a qualified registered health practitioner or where this is not reasonably practicable is evidenced by the production of a statutory declaration within 24 hours of the commencement of such absence.
- (b) Notwithstanding (a), a medical certificate or other evidence satisfactory to the Employer will be required for the following absences:

- (1) All sick leave taken on the day(s) immediately before the
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commencement of a period of annual leave or any day(s) immediately following the conclusion of a period of annual leave;

- (2) Sick leave taken the day prior to and/ or after public holidays or weekends;
- (3) set out at (1) and (2) above where such absence is the first instance by the Employee in a twelve month period.

- (c) Leave taken by an Employee under (iii)(a) is deducted from the amount of personal leave under (i).

(iii) Personal leave to care for Immediate Family or household members

- (a) An Employee is entitled to use up their personal leave, including accrued leave, to provide care or support for members of their Immediate Family or household who are ill/ injured and require care or support or who require care or support due to an unexpected emergency. Leave may be taken for part of a single day.
- (b) Evidence supporting claim
  - (1) When taking leave to provide care or support for members of their Immediate Family or household who are ill/ injured and require care or support, the Employee must, if required by the Employer, establish by production of a medical certificate, the illness/injury of the person concerned, the relationship of the person to the Employee and that the illness/ injury is such as to require care or support by another.
  - (2) When taking leave to care for members of their Immediate Family or household who require care or support due to an unexpected emergency, the Employee must, if required by the Employer, establish by production of documentation acceptable to the Employer or statutory declaration, the nature of the emergency and that such emergency resulted in the person concerned requiring care or support by another.
  - (3) The Employee must, where practicable, give the Employer notice prior to their absence of the intention to take leave, the name of the person requiring care or support and their relationship to the Employee, the reasons for taking such leave and the estimated length of absence. If it is not practicable for the Employee to give prior notice of absence, the Employee must notify the Employer by telephone of such absence at the first opportunity on the day of absence or as soon as reasonably practicable.
  - (4) Each day or part of a day personal leave taken in accordance with (iii)(a) is to be deducted from the amount of personal leave provided in (i).

(iv) Unpaid carer's leave

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Where an Employee has exhausted all paid personal leave entitlements, they are entitled

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to take unpaid personal leave for members of their Immediate Family or household who are ill or injured and require care or support due to an unexpected emergency. The Employer and the Employee will agree on the period. In the absence of agreement, the Employee (including a casual Employee) is entitled to take up to two days of unpaid carer's leave per occasion, provided the requirements of (iii)(b) are met.

26. PAYMENT OF SALARY

- (i) All salaries and other payments due to the Employee will be paid weekly or fortnightly, provided that the payment for any overtime worked may be deferred to the next pay day following the completion of the working cycle within which such overtime is worked.
- (ii) Upon cessation of employment, all wages and other payments due to Employees will be paid as soon as practicable after such termination.
- (iii) Salaries may be paid monthly by agreement between the Employer and Employee.

27. UNIFORM ALLOWANCE

- (i) Where the Employee is required to wear a uniform, the Employer will provide an annual allowance for the purposes of purchasing uniforms. The allowance will be as follows:
  - (a) \$600.00 in the first year of service and \$400.00 in the second and subsequent years of service for Employees working on average 24 or more hours per week;
  - (b) \$400.00 in the first year of service and \$250.00 in the second and subsequent years of service for Employees working, on average less than 24 hours per week.
- (ii) Employees who are designated to work in an area requiring specialist dress requirements e.g. Operating Suite, will be provided with a uniform in compliance with the needs of their position. The allowances in subclause (i) above are therefore not payable to these Employees.
- (iii) Day Hospital Nurses will be permitted to use the first five minutes and last five minutes of each shift to change into their scrubs/theatre attire.

28. VEHICLE ALLOWANCES

An Employee who is required by the Employer to provide a car for the performance of their duties will be paid a travel allowance of 99 cents per kilometre.

29. COMPASSIONATE LEAVE

- (i) An Employee is entitled to 2 days of compassionate leave for each occasion (a **'permissible occasion'**) when a member of the Employee's Immediate Family, or a member of the Employee's household:
  - (a) contracts or develops a personal illness that poses a serious threat to their life; or

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- (b) sustains a personal injury that poses a serious threat to their life; or
    - (c) dies.
  - (ii) An Employee may take compassionate leave for a particular permissible occasion if the leave is taken:
    - (a) to spend time with the member of the Employee's Immediate Family or household who has contracted or developed the personal illness, or sustained the personal injury, referred to in subclause (i); or
    - (b) after the death of the member of the Employee's Immediate Family or household referred to in subclause (i).
  - (iii) An Employee may also take compassionate leave of up to 2 days on each occasion in which they suffer or their partner suffers a pregnancy loss.
  - (iv) An Employee may take compassionate leave for a particular permissible occasion as a single continuous 2 day period; or 2 separate periods of 1 day each; or any separate periods to which the Employee and the Employer agree.
  - (v) If the permissible occasion is the contraction or development of a personal illness, or the sustaining of a personal injury, the Employee may take the compassionate leave for that occasion at any time while the illness or injury persists.
  - (vi) If, in accordance with this clause an Employee, other than a casual Employee, takes a period of compassionate leave, the Employer must pay the Employee at the Employee's base rate of pay for the Employee's ordinary hours of work in the period. For casual Employees, compassionate leave is unpaid leave.
  - (vii) The Employee, if required by the Employer, will supply relevant evidence of the requirement for such leave. Such evidence may include a requirement to supply a medical certificate.

### 30. PARENTAL LEAVE

- (i) Employees are entitled to parental leave in accordance with the provisions of the *Act*, as amended from time to time.
- (ii) Permanent Employees eligible for parental leave in accordance with subclause (i) will be entitled to access one of the following forms of paid parental leave:
  - (a) 12 weeks paid primary carer's leave will be given to any permanent Employee who will be a primary carer; and
  - (b) 2 weeks' paid secondary carer's leave will be given to any permanent Employee who will be a secondary carer.

The payment provided above in subclause (a) and (b) will not be reduced in terms of its monetary value by the Commonwealth Government's scheme of paid parental leave (as per the *Paid Parental Leave Act 2010*).

- (iii) Parental leave may be taken at half pay over twice the length.

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- (iv) In accordance with s.73 of the Act, a pregnant Employee will be entitled to work during the 6 week period before the estimated date of birth of the child, provided that if requested by the Employer, the Employee will provide a statement from their medical practitioner or midwife to the effect that continuing employment until the date of confinement is not a risk to the Employee or the unborn child.

In addition, the Employee may take all accrued annual leave prior to a return to work from parental leave.

- (v) Right to request

- (a) An Employee entitled to parental leave pursuant to the provisions of this clause may request the Employer to allow the Employee:

- (1) to extend the 52 weeks of unpaid parental leave by a further continuous period of leave not exceeding 12 months;
- (2) to return from a period of parental leave on a part-time basis while the child is of school age or younger,

to assist the Employee in balancing work and parental responsibilities.

- (b) The Employer will consider the request having regard to the Employee's circumstances and, provided the request is genuinely based on the Employee's parental responsibilities, may only refuse the request on reasonable grounds related to the effect of the workplace or the Employer's business. Such grounds might include cost, lack of adequate replacement staff, loss of efficiency, the impact on customer service and other permissible considerations.

- (c) Employee's request and the Employer's decision to be in writing

The Employee's request and the Employer's decision made under (v)(a) and (b) must be recorded in writing.

- (d) Request to return to work part-time

Where an Employee wishes to make a request under (v)(a)(2), such a request must be made as soon as possible but no less than seven weeks prior to the date upon which the Employee is due to return to work from parental leave.

### 31. TERMINATION OF EMPLOYMENT

- (i) Notice of termination by the Employer

- (a) In order to terminate the employment of an Employee, the Employer will give to the Employee the following notice.

| Period of continuous service | Period of notice |
|------------------------------|------------------|
| 1 year or less               | 1 week           |

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|                                                  |         |
|--------------------------------------------------|---------|
| Over 1 year and up to the completion of 3 years  | 2 weeks |
| Over 3 years and up to the completion of 5 years | 3 weeks |
| Over 5 years                                     | 4 weeks |

- (b) In addition to the notice above, Employees over 45 years of age at the time of the giving of the notice with not less than two years continuous service, will be entitled to an additional week's notice.
- (c) Payment in lieu of the notice prescribed above will be made if the appropriate notice period is not given. Provided that employment may be terminated by part of the period of notice, and part payment in lieu of notice.
- (d) The required amount of payment in lieu of notice must equal or exceed the total of all amounts that, if the Employee's employment had continued until the end of the required period of notice, the Employer would have become liable to pay to the Employee because of the employment continuing during that period. That total must be calculated on the basis of:
- (1) the Employee's ordinary hours of work (even if not standard hours); and
  - (2) the amounts ordinarily payable to the Employee in respect of those hours, including (for example) allowances, loadings and penalties; and
  - (3) any other amounts payable under the Employee's contract of employment
- (e) The period of notice in this clause does not apply:
- (1) in the case of dismissal for serious misconduct;
  - (2) to Employees engaged for a specific period of time or for a specific task or tasks;
  - (3) to trainees whose employment under a traineeship agreement or an approved traineeship is for a specified period or is, for any other reason, limited to the duration of the agreement; or
  - (4) to casual Employees.
- (f) Continuity of service will be in accordance with s.22 of the Act.
- (ii) Notice of termination by Employee
- (a) The notice of termination required to be given by an Employee will be the same as that required of the Employer, save and except that there will be no additional notice based on the age of the Employee concerned.
  - (b) Subject to the requirements of s.324(1)(b) of the Act, if an Employee fails to



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give the notice specified in (ii)(a), the Employer may, with the written authorisation of the Employee, withhold monies due to the Employee to a maximum amount of one week (providing the employee is 18 years of age or older), excluding any amount for notice worked by the Employee.

(iii) Job search entitlement

Where an Employer has given notice of termination to an Employee, an Employee will be allowed up to one day's time off without loss of pay for the purpose of seeking other employment. The time off will be taken at times that are convenient to the Employee after consultation with the Employer.

32. REDUNDANCY

- (i) Where the Employer has made a definite decision to introduce a major change to production, program, organisation, structure, or technology that is likely to have a significant effect on Employees to which this Agreement applies, the Employer will consult with affected Employees in accordance with the Consultation regarding change provision of this Agreement.

Transfer to lower paid duties

- (ii) Where an Employee is transferred to lower paid duties for reasons set out in subclause (i), the Employee will be entitled to the same period of notice of transfer as they would be entitled to if their employment had been terminated, and the Employer may at the Employer's option, make payment in lieu thereof of an amount equal to the difference between the former ordinary time rate of pay and the new lower ordinary time rates for the number of weeks' notice still owing.

Severance pay

- (iii) An Employee whose employment is terminated for reasons set out in subclause (i) will be paid the following amount of severance pay in respect of a period of continuous service.

- (a) If an Employee is under 45 years of age, the Employer will pay in accordance with the following scale:

| Years of Service              | Entitlement |
|-------------------------------|-------------|
| Less than 1 year              | Nil         |
| 1 year and less than 2 years  | 4 weeks     |
| 2 years and less than 3 years | 7 weeks     |
| 3 years and less than 4 years | 10 weeks    |
| 4 years and less than 5 years | 12 weeks    |
| 5 years and less than 6 years | 14 weeks    |
| 6 years and over              | 16 weeks    |

- (b) Where an Employee is 45 years of age or over, the entitlement will be in accordance with the following scale:

| Years of Service | Entitlement |
|------------------|-------------|
|------------------|-------------|

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|                               |            |
|-------------------------------|------------|
| Less than 1 year              | Nil        |
| 1 year and less than 2 years  | 5 weeks    |
| 2 years and less than 3 years | 8.75 weeks |
| 3 years and less than 4 years | 12.5 weeks |
| 4 years and less than 5 years | 15 weeks   |
| 5 years and less than 6 years | 17.5 weeks |
| 6 years and over              | 20 weeks   |

#### Definitions

- (iv) **'Week's pay'** means the all-purpose rate of pay for the Employee concerned at the date of termination, and will include, in addition to the ordinary rate of pay, over-Agreement payments, shift penalties and uniform and laundry allowances paid in accordance with the Agreement.

#### Employee Leaving During Notice Period

- (v) An Employee whose employment is terminated for reasons set out in subclause (i) may terminate their employment during the period of notice and, if so, will be entitled to the same benefits and payments under this clause had they remained with the Employer until the expiry of such notice. Provided in such circumstances the Employee will not be entitled to payment in lieu of notice.

#### Alternative Employment

- (vi) Where the Employer offers the Employee acceptable alternative employment no severance payment is payable, subject to an order of the FWC.

#### Time off Period of Notice

- (vii) During the period of notice of termination given by the Employer, an Employee will be allowed up to 1 day's time off without loss of pay during each week of notice for the purpose of seeking other employment.
- (viii) If the Employee has been allowed paid leave for more than 1 day during the notice of the Employer, produce proof of attendance at an interview or they will not receive payment for the time absent.
- (ix) For this purpose, a statutory declaration will be sufficient.

#### Employees with Less Than One Year's Continuous Service

- (x) This clause does not apply to Employees with less than 1 year's continuous service.

#### Employees Exempted

- (xi) This clause will not apply where employment has been terminated because the conduct of an Employee justifies instant dismissal or in the case of casual Employees, or Employees engaged for a specific period of time or for a specified task or tasks.

### 33. SALARY SACRIFICE PROCEDURE (SUPERANNUATION ONLY)

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- (i) Permanent Employees may be able to make voluntary pre-tax contributions or payments through a written salary sacrifice agreement between the Employer and the Employee. The Employer will pay the salary sacrifice amount in accordance with the salary sacrifice agreement.
  - (ii) An Employee may apply to have their ordinary time earnings reduced by an amount nominated by them as a salary sacrifice contribution for their benefit.
  - (iii) The total value of the reduced salary and the agreed value of the benefits provided will not be less than the amount that would otherwise be paid if the salary sacrifice arrangement was not in place.
  - (iv) The Employer recognises the need for Employees to consider independent financial and taxation advice and recommends that Employees consider such advice prior to entering into salary sacrifice arrangements.
  - (v) In the event that the law governing superannuation and/or taxation make the objective of this clause ineffective, unattainable or illegal, the Employer will advise the Employee concerned. The salary sacrifice contribution arrangement will be terminated or amended to comply with such laws.
  - (vi) Unless otherwise agreed by the Employer, an Employee may revoke or vary their salary sacrifice contribution/payment by giving not less than one month's written notice, provided the terms of any other agreement relating to the salary sacrifice benefit are met.

#### 34. INDIVIDUAL FLEXIBILITY ARRANGEMENTS

- (i) The Employer and an Employee covered by this Agreement may agree to make an individual flexibility arrangement to vary the effect of terms of the Agreement if:
  - (a) the agreement deals with 1 or more of the following matters:
    - (1) arrangements about when work is performed;
    - (2) overtime rates;
    - (3) penalty rates;
    - (4) allowances;
    - (5) leave loading; and
  - (b) the arrangement meets the genuine needs of the Employer and Employee in relation to the matter or matters it deals with; and
  - (c) the arrangement is genuinely agreed to by the Employer and Employee without coercion or duress.
- (ii) An individual flexibility arrangement may only be made after the individual Employee has commenced employment with the Employer.

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- (iii) An Employer who wishes to initiate the making of an individual flexibility arrangement must:
    - (a) give the Employee a written proposal; and
    - (b) if the Employer is aware that the Employee has or should reasonably be aware that the Employee may have, limited understanding of written English, take reasonable steps to ensure that the Employee understands the proposal.
  - (iv) If the Employer proposes to enter into an individual flexibility arrangement with an Employee, the Employer must meet with the Employee to discuss the proposal prior to entering the individual flexibility arrangement if the Employee requests such a meeting.
  - (v) The Employer must ensure that the terms of the individual flexibility arrangement:
    - (a) are about permitted matters under section 172 of the *Act*; and
    - (b) are not unlawful terms under section 194 of the *Act*; and
    - (c) result in the Employee being better off overall than the Employee would be if no individual flexibility arrangement were agreed to.
  - (vi) The Employer must ensure that the individual flexibility arrangement:
    - (a) is in writing; and
    - (b) includes the name of the Employer and Employee; and
    - (c) is signed by the Employer and Employee and if the Employee is under 18 years of age, signed by a parent or guardian of the Employee; and
    - (d) includes details of:
      - (1) the terms of the enterprise agreement that will be varied by the arrangement; and
      - (2) how the arrangement will vary the effect of the terms; and
      - (3) how the Employee will be better off overall in relation to the terms and conditions of their employment as a result of the arrangement; and
    - (e) states the day on which the arrangement commences; and
    - (f) describes how the individual flexibility arrangement can be terminated.
  - (vii) The Employer must give the Employee a copy of the individual flexibility arrangement within 14 days after it is agreed to.
  - (viii) The Employer or Employee may terminate the individual flexibility arrangement:
    - (a) at any time, by agreement in writing between the Employer and the Employee; or
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- (b) by the Employer or the Employee giving 28 days written notice to the other party.
  - (ix) An individual flexibility arrangement terminated in accordance with clause (viii)(b) ceases to have effect at the end of the period of notice required under that clause.
  - (ix) The Employer or Employee may use the dispute settlement procedure in this Agreement to deal with disputes that may arise concerning the matters dealt with in the individual flexibility arrangement.

#### 35. PROFESSIONAL DEVELOPMENT

- (i) Each permanent full-time nurse (pro rata, for part time nurses) is able to access up to 5 days paid leave for the purposes of attendance at approved conferences, seminars/union training or exams and educations evenings. Each application will be assessed on its merits in the context of the applicability of the educational event, the number of other similar applications and the resources available to the Employer.
- (ii) The time and manner of taking any entitlement under this provision is to be mutually agreed between the Employer and the Employee and the course and means of dissemination of conference/seminar information is to be approved by the Managing Director.
- (iii) Reasonable travel, accommodation and registration costs may be paid by the Employer, when the Employer selects and/or approves the Employee for the conference/seminar.
- (iv) All staff granted conference/seminar leave will be required to provide an in-service to other staff on the learning from the leave and to provide a report to the Director of Nursing (with the exception of union training or conference leave).
- (v) All professional development leave will be paid at ordinary rates of pay.

#### 36. HIGHER DUTIES ALLOWANCE

- (i) For planned absences of the Nurse Unit Manager (NUM) or Director of Nursing (DON) of 3 or more working days or shifts, a Registered Nurse (RN)/Clinical Nurse Specialist (CNS) will receive at least the minimum rate for that higher classification while acting in that role. This will be paid for the entire period, starting from day 1 and will be paid based on the NUM's/DON's regular working days/ work pattern.
- (ii) Higher Duties allowance does not apply where an absence is not pre-planned or less than 3 working days or shifts and an employee is receiving an in-charge allowance.

#### 37. IN-CHARGE ARRANGEMENTS

- (i) For unplanned or short absences of a NUM/DON of less than 3 working days or shifts, a RN/CNS in charge receives an in-charge allowance per shift (as per Appendix 1), on top of their normal pay, based on the NUM's/DON's regular working days/ work pattern.

#### 38. ROSTERS

- (i) Clinics

- 
- (a) Employees will work in accordance with a weekly or fortnightly roster fixed by the Employer.
  - (b) The roster will set out Employees' daily ordinary working hours and starting and finishing times and will be displayed in a place conveniently accessible to Employees at least 7 days before the commencement of the roster period.
  - (c) Unless the Employer otherwise agrees, an Employee desiring a roster change will give 7 days' notice except where the Employee is ill or in an emergency.
  - (d) 7 days' notice of a change of roster will be given by the Employer to an Employee. Except that, a roster may be altered at any time to enable the functions of the facility to be carried out where another Employee is absent from work due to illness or in an emergency. Where any such alteration requires an Employee working on a day which would otherwise have been the Employee's day off, the day off instead will be as mutually arranged.

(ii) Theatres

The roster will set out Employees' daily ordinary working hours and starting and finishing times and will be displayed in a place conveniently accessible to Employees. A roster indicating the day of work will be available at least 7 days before the commencement of the roster period. A roster indicating the starting and finishing times will be available at least 24 hours before the commencement of the roster period. Employees will be contacted regarding potential changes to posted shifts, with any changes by mutual agreement.

39. FAMILY VIOLENCE LEAVE

The Employer recognises that Employees sometimes face situations of violence or abuse in their personal life that may affect their attendance or performance at work. The Employer seeks to develop a supportive workplace in which victims of family violence can come forward for help and support.

(i) Definition of Family Violence

The Employer accepts the definition of family violence as stipulated in the relevant state legislation. The definition of family violence includes physical, sexual, financial, verbal or emotional abuse by a family member.

(ii) General Measures

- (a) Proof of family violence may be required and can be in the form of an agreed document issued by the Police Service, a Court, a doctor, district nurse, maternal and health care nurse or a Family Violence Support Service or lawyer.
- (b) All personal information concerning family violence will be kept confidential in line with the Employer's standard practices and relevant legislation.
- (c) An Employee experiencing family violence may raise the issue with their immediate supervisor/manager or designated person as identified by the Employer.

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(iii) Individual Support

- (a) In order to provide support to an Employee experiencing family violence and to provide a safe work environment to all Employees, the Employer will approve a request from an Employee experiencing family violence for the following, providing the request is reasonable in all the circumstances:
- (1) changes to their span of hours or pattern or hours and/or shift patterns;
  - (2) job redesign or changes to duties within their skills and capabilities;
  - (3) relocation to suitable employment within the workplace;
  - (4) a change to their telephone number or email address to avoid harassing contact;
  - (5) any other appropriate measure including those available under existing provisions for family friendly and flexible work arrangements.
- (b) An Employee experiencing family violence will be offered a referral to the relevant local resources.
- (c) The Employer will make available a pack of resource information in regard to family violence and support services available. An Employee that discloses to their supervisor that they are experiencing family violence will be given a resource pack of information regarding support services.

(iv) Leave

- (a) The Employer will provide Employees who are victims of family violence and need time off work for medical or legal assistance, court appearances, counselling, relocation, or to make other safety arrangements with flexibility to use their personal/carers leave for such purposes.
- (b) In addition, the Employer will provide up to 10 paid days exceptional circumstances leave per annum. This leave may be taken as consecutive or single days or as a fraction of a day. This leave will not be accrued.
- (c) The Employee will apply in advance for this leave wherever possible.
- (d) An Employee who supports a person experiencing family violence may take carer's leave to accompany them to court, to hospital, or to mind children.

40. REQUESTS FOR FLEXIBLE WORK ARRANGMENTS

- (i) The NES provides rights for an Employee to request flexible working arrangements. This clause explains some of the NES provisions - see section 65 of the Fair Work Act for full details.
- (ii) An Employee may request a change in working arrangements if they:
- (a) are a parent, or have responsibility for the care, of a child who is of school age

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or younger; This includes the right of an Employee returning to work after parental leave to request part time work to care for the child.

- (b) are pregnant;
  - (c) are a carer (within the meaning of the *Carer Recognition Act 2010*);
  - (d) have a disability;
  - (e) are 55 or older;
  - (f) are experiencing family and domestic violence;
  - (g) are providing care or support to a member of their Immediate Family or their household, who requires care or support because the member is experiencing family and domestic violence.
- (iii) To be eligible to make a request;
- (a) an Employee other than a casual Employee must have completed at least 12 months of continuous service with the Employer;
  - (b) a casual Employee must be a regular casual Employee who has been employed on that basis for a sequence of periods of employment during a period of at least 12 months and who has a reasonable expectation of continuing employment.
- (iv) The request must be in writing giving detail of the change sought and the reasons for it.
- (v) The Employer must respond to the request in writing within 21 days, stating whether they grant or refuse the request and if they refuse the request giving the reasons for the refusal.
- (vi) The Employer may refuse the request only on reasonable business grounds.

#### 41. WORKPLACE DELEGATES

- (i) Clause 28A of the relevant modern award provides for the exercise of the rights of workplace delegates set out in section 350C of the Act.



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APPENDIX 1 – WAGE RATES SCHEDULE

|                                                 | FFPPOA<br>1 July 2025<br>(5%) | FFPPOA<br>1 July 2026<br>(4.0%) | FFPPOA<br>1 July 2027<br>(4.0%) |
|-------------------------------------------------|-------------------------------|---------------------------------|---------------------------------|
|                                                 | \$                            | \$                              | \$                              |
| <b>Assistant in Nursing</b>                     |                               |                                 |                                 |
| 1st year                                        | 32.47                         | 33.76                           | 35.12                           |
| 2nd year                                        | 32.57                         | 33.87                           | 35.23                           |
| 3rd year                                        | 32.69                         | 33.99                           | 35.35                           |
| 4th year                                        | 32.79                         | 34.10                           | 35.47                           |
|                                                 |                               |                                 |                                 |
| <b>Enrolled Nurse with notation</b>             |                               |                                 |                                 |
| 1st year                                        | 34.98                         | 36.37                           | 37.83                           |
| 2nd year                                        | 35.71                         | 37.14                           | 38.62                           |
| 3rd year                                        | 36.51                         | 37.97                           | 39.49                           |
| 4th year                                        | 37.25                         | 38.74                           | 40.29                           |
| Thereafter                                      | 38.05                         | 39.57                           | 41.16                           |
| <b>Enrolled Nurse</b>                           |                               |                                 |                                 |
| 1st year                                        | 37.00                         | 38.48                           | 40.02                           |
| 2nd year                                        | 37.84                         | 39.36                           | 40.93                           |
| 3rd year                                        | 38.65                         | 40.20                           | 41.80                           |
| 4th year                                        | 39.46                         | 41.04                           | 42.68                           |
| Thereafter                                      | 40.29                         | 41.90                           | 43.58                           |
|                                                 |                               |                                 |                                 |
| <b>Registered Nurse/Midwife</b>                 |                               |                                 |                                 |
| 1st year                                        | 38.08                         | 39.61                           | 41.19                           |
| 2nd year                                        | 40.17                         | 41.78                           | 43.45                           |
| 3rd year                                        | 42.23                         | 43.92                           | 45.68                           |
| 4th year                                        | 44.51                         | 46.29                           | 48.14                           |
| 5th year                                        | 46.68                         | 48.55                           | 50.49                           |
| 6th year                                        | 48.91                         | 50.87                           | 52.90                           |
| 7th year                                        | 51.42                         | 53.48                           | 55.61                           |
| 8th year                                        | 54.19                         | 56.36                           | 58.61                           |
|                                                 |                               |                                 |                                 |
| <b>CNS</b>                                      | 56.22                         | 58.47                           | 60.80                           |
|                                                 |                               |                                 |                                 |
| <b>Nurse Educator</b>                           |                               |                                 |                                 |
| 1st year                                        | 62.37                         | 64.86                           | 67.46                           |
| 2nd year and thereafter                         | 64.10                         | 66.67                           | 69.33                           |
|                                                 |                               |                                 |                                 |
| <b>Unit Nurse Manager</b>                       |                               |                                 |                                 |
| Level 1                                         | 69.41                         | 72.18                           | 75.07                           |
| Level 2                                         | 70.58                         | 73.40                           | 76.34                           |
|                                                 |                               |                                 |                                 |
| <b>Director of Nursing<br/>(however titled)</b> | 72.60                         | 75.50                           | 78.52                           |

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ALLOWANCES SCHEDULE

|                                                                                      | <b>FFPPOA<br/>1 July 2025</b> | <b>FFPPOA<br/>1 July 2026</b> | <b>FFPPOA<br/>1 July 2027</b> |
|--------------------------------------------------------------------------------------|-------------------------------|-------------------------------|-------------------------------|
| Meal                                                                                 | 25.36                         | 26.37                         | 27.43                         |
| In Charge Allowance                                                                  | 31.22                         | 32.47                         | 33.76                         |
| <i>Registered Nurses</i>                                                             |                               |                               |                               |
| Hosp. Cert/ Post Grad. Cert.<br>(per week)                                           | 45.47                         | 47.28                         | 49.17                         |
| Post Grad Dip. Or<br>Degree (per week)                                               | 68.95                         | 71.71                         | 74.58                         |
| Masters/ PhD (per week)                                                              | 83.62                         | 86.97                         | 90.45                         |
| <i>Enrolled Nurses</i>                                                               |                               |                               |                               |
| Cert IV (per week)                                                                   | 34.47                         | 35.85                         | 37.28                         |
| Adv. Dip. (per week)                                                                 | 41.08                         | 42.72                         | 44.43                         |
| <i>Telephone On Call (per<br/>day)</i>                                               |                               |                               |                               |
| Monday to Friday<br>(5:00pm - 9:00pm)                                                | 197.88                        | 205.80                        | 214.03                        |
| Saturday (2:00pm - 9:00pm)                                                           | 342.28                        | 355.97                        | 370.21                        |
| Sunday (12:00pm -<br>9:00pm)                                                         | 412.86                        | 429.37                        | 446.55                        |
| Public Holiday Week Day<br>(5:00pm - 9:00pm)                                         | 280.79                        | 292.02                        | 303.70                        |
| Public Holiday Weekend<br>(12:00pm -<br>9:00pm)                                      | 516.08                        | 536.72                        | 558.19                        |
| Public Holiday (Boxing Day,<br>Christmas Day and New Years<br>Day) (8:00am - 9:00pm) | 721.95                        | 750.83                        | 780.86                        |

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## SCHEDULE 1 – CLASSIFICATIONS

- (i) **‘Assistant in Nursing’** means a person, other than a registered nurse, student nurse, trainee enrolled nurse, or enrolled nurse, who is employed in nursing duties in a day surgery or IVF.
- (ii) **‘Enrolled Nurse with notation’** means a person registered with the Board with the notation “does not hold Board approved qualification in medicines administration”.
- (iii) **‘Enrolled Nurse’** means a person registered with the Board as such.
- (iv) **‘Registered Nurse’** means a person registered by the Board as a Registered Nurse.
- (v) **‘Clinical Nurse Specialist’** means a registered nurse with relevant post-basic qualifications and 12 months’ experience working in the clinical area of his/her specified post-basic qualification, or a minimum of four years’ post-basic registration experience, including three years’ experience in the relevant specialist field and who satisfies the local criteria.

The Clinical Nurse Specialist is identified as a core person in the specialty area of practice. The focus of the Clinical Nurse Specialist within IVF Australia is to be a clinical resource and leader in the specialty of Assisted Reproductive Technology (ART).

Whilst a Registered Nurse may also perform the same functions, the Clinical Nurse Specialist is identified as performing these duties at an advanced level competently, efficiently and consistently.

A Clinical Nurse Specialist should have been working in the field of ART for a minimum of 2 years and/ or a postgraduate qualification in Reproductive/ Infertility nursing.

The Clinical Nurse Specialist must be able to undertake the following responsibilities:

- (a) Relieves the Unit Nurse Manager when absent;
- (b) Is regarded as the 'expert core' person;
- (c) Is actively involved in the orientation of new staff members to the area;
- (d) Acts as a preceptor for new graduates and new staff members;
- (e) Conducts a minimum of 8 (eight) in-service education sessions to IVFA staff.
- (f) and external stakeholders e.g. maternity units, day stay units etc.
- (g) Accrues at least 10 CPE points per year as part of the Code of Practice.
- (h) Conducts and participates in onsite Nurses meetings.
- (i) Actively participates in the Quality Assurance program.
- (j) Works a minimum of 3 days per week.
- (k) Assumes responsibility for the ongoing assessment of staff clinical.
- (l) competencies and the maintenance of appropriate records.

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- (m) Is responsible to the Unit Nurse Manager of each unit.
- (vi) **'Unit Nurse Manager'** means a registered nurse in charge of a ward or unit or group of wards or units in a day hospital or a group of nurses involved in IVF and will include:
- (a) "Unit Nurse Manager Level 1" whose responsibilities include:
- (1) Co-ordination of Patient Services
    - (A) Liaison with all health care disciplines for the provision of services to meet patient needs at one IVF Clinic only that has under one thousand cycles per annum.
    - (B) The orchestration of services to meet patient needs after discharge from the day surgery or completion of out-patient treatments.
    - (C) Monitoring catering and transport services.
  - (2) Unit Management
    - (A) Participating in policy development and implementation.
    - (B) Dissemination of information to all personnel.
    - (C) Ensuring environmental work health and safety.
    - (D) Monitoring the use and maintenance of equipment.
    - (E) Monitoring the supply and use of stock and supplies.
    - (F) Managing financial matters and cost control in respect of nursing within that span of control.
    - (G) Monitoring cleaning services.
  - (3) Nursing Staff Management
    - (A) Direction, co-ordination and supervision of nursing activities.
    - (B) Providing leadership and role modelling, in collaboration with others including the Clinical nurse specialists and the Nurse educator, particularly in the areas of action research and quality assurance programs.
    - (C) Staff selection and education.
    - (D) being accountable for the management of human and material resources within a specified span of control, including the development and evaluation of staffing
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methodologies.

- (E) Rostering and/or allocation of nursing staff.
    - (F) Development and/or implementation of new nursing practice according to patient need.
  - (b) "Unit Nurse Manager Level 2" whose responsibilities in relation to patient services, ward or unit management and staff management are in excess of those of a Unit Nurse Manager Level 1.
    - (A) Responsibility for more than one clinic and/or a clinic with more than one thousand cycles per annum.
- (vii) **'Nurse Educator'** means a registered nurse with a post registration certificate, who has relevant experience or other qualifications, deemed appropriate by the Employer who is appointed to a position of Nurse Educator.
- A Nurse Educator will be responsible for the development, implementation and delivery of nursing education programs within a group of clinics/day surgeries. Nurse education programs will mean courses conducted such as post registration certificates, continuing nurse education, new graduate orientation, post registration enrolled nurses' courses and where applicable general staff development courses.
- A person appointed to a position of Nurse Educator who holds relevant tertiary qualification in education or tertiary postgraduate specialist clinical nursing qualifications will commence on the 2nd year rate of the salary scale.
- A person appointed as the sole nurse educator for a group of clinics/day surgeries will be paid at the 2nd year rate of the salary scale.
- Incremental progression for Nurse Educators' will be on completion of 12 months' satisfactory service.
- (viii) **'Director of Nursing'** (however titled) includes:
- (a) A registered nurse who is registered by their Employer with the Health Administration Corporation of New South Wales as the person in charge of the day surgery; or
  - (b) A registered nurse appointed as in charge of IVF Nursing Services.

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## SCHEDULE 2: 12 HOUR SHIFT ROSTER ARRANGEMENTS

### **12 Hour Shift Roster**

The roster will comply with the provisions of this Agreement.

The Employer will not unreasonably refuse an Employee's request not to be rostered to undertake a 12-hour ordinary shift in accordance with this Agreement.

### **Roster Guidelines**

The 12-hour roster must provide for the following:

- No more than two consecutive shifts in a row;
- Day shifts will not commence before 0600 hours;
- There will be a reasonable distribution of days off between block shifts;
- The roster cycle will be planned over a period of two weeks.

### **Hours of Work**

#### Maintenance of Contracted Hours

All Employees will have their hours of work protected and must be given the opportunity to work their contracted hours.

#### Shift Times

As per roster.

#### Minimum Breaks Between Shifts

The minimum rostered break between shifts will be at least 11.5 hours.

#### Meals and Rest Intervals

All Employees will be given 2 thirty-minute unpaid meal intervals.

Two separate ten-minute intervals (in addition to meal breaks) will be allowed each Employee on duty during each ordinary shift of 12 hours as the case may be. Subject to agreement between the Employer and the Employee, such intervals may alternatively be taken as one twenty-minute interval. Such interval will count as working time.

#### Payment Of Salaries

##### *Ordinary Hours Full time Employees (12 hours)*

Employees will be paid for the hours worked in each fortnight.

##### *Shift Allowances and Payment for Saturday and Sunday Work*

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Will be consistent with this Agreement.

*Shift Penalties*

Will be consistent with this Agreement.

*Leave Provisions*

Annual leave and sick leave will be in accordance with this Agreement.

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SCHEDULE 3: EMPLOYING ENTITIES COVERED BY THIS AGREEMENT

IVF Australia Pty Ltd

City West Specialist Day Hospital Pty Ltd T/A City West Day Surgery Unit Trust

Alexandria Specialist Day Hospital Pty Ltd

North Shore Specialist Day Hospital T/A IVF Australia Pty Ltd



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Signed on behalf of the Employers

|                                                               |                                                                                   |
|---------------------------------------------------------------|-----------------------------------------------------------------------------------|
| Name:                                                         | Steven McArthur                                                                   |
| Signature:                                                    |  |
| Date:                                                         | 23/06/2026                                                                        |
| Explanation of this person's authority to sign the Agreement: | Managing Director of IVF Australia                                                |
| Address:                                                      | Level 3, 176 Pacific Hwy Greenwich NSW 2065                                       |

Signed on behalf of the Employees

|                                                               |                                                                                     |
|---------------------------------------------------------------|-------------------------------------------------------------------------------------|
| Name:                                                         | Wayne Hatcher                                                                       |
| Signature:                                                    |  |
| Date:                                                         | 26/06/2026                                                                          |
| Explanation of this person's authority to sign the Agreement: | Director of Nursing - North Shore Day Hospital                                      |
| Address:                                                      | Level 1, 176 Pacific Hwy, Greenwich NSW 2065                                        |

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Signed on behalf of the Australian Nursing and Midwifery Federation New South Wales Branch

Name: Michael Whaites

Signature: 

Date: 6 July 2026

Explanation of  
this person's  
authority to sign  
the Agreement: Branch Secretary, ANMF NSW Branch

Address: 50 O'Dea Avenue, Waterloo NSW 2017

**IN THE FAIR WORK COMMISSION**

**FWC Matter No.: AG2026/1648**

**Applicant: IVF Australia Pty Ltd**

**Section 185 – Application for approval of a single enterprise agreement**

**Undertaking-Section 190**

I, Steven McArthur, Managing Director for IVF Australia Pty Ltd, City West Specialist Day Hospital Pty Ltd, Alexandria Specialist Day Hospital Pty Ltd and North Shore Specialist Day Hospital Pty Ltd ("the Employer") give the following undertakings with respect to the IVF Australia Pty Ltd Nursing Enterprise Agreement 2026 ("the Agreement"):

1. I have the authority given to me by the Employer to provide this undertaking in relation to the application before the Fair Work Commission.
2. The base rates of pay outlined in the Agreement for 1 July 2026 will apply from 26 June 2026 for the for the classifications outlined in the table:

|                              |          |
|------------------------------|----------|
| Assistant in Nursing         | 1st year |
| Assistant in Nursing         | 2nd year |
| Assistant in Nursing         | 4th year |
| Enrolled Nurse with notation | 1st year |
| Enrolled Nurse with notation | 2nd year |
| Enrolled Nurse with notation | 3rd year |
| Enrolled Nurse with notation | 4th year |
| Enrolled Nurse               | 1st year |
| Registered Nurse/Midwife     | 1st year |

3. The base rate of pay for the Assistant in Nursing 3<sup>rd</sup> Year will be \$34.06 from 26 June 2026.
4. These undertakings are provided on the basis of issues raised by the Fair Work Commission in the application before the Fair Work Commission.



\_\_\_\_\_  
Signature

17 July 2026

\_\_\_\_\_  
Date

## Part 7—Consultation and Dispute Resolution

[Part 7—Consultation and Dispute Resolution renamed by [PR774743](#) from 01Jul24]

### 28A. Workplace delegates' rights

[28A inserted by [PR774743](#); substituted retrospectively by [PR795662](#) ppc 01Jul24]

**28A.1** Clause 28A provides for the exercise of the rights of workplace delegates set out in section 350C of the [Act](#).

NOTE: Under section 350C(4) of the [Act](#), the employer is taken to have afforded a workplace delegate the rights mentioned in section 350C(3) if the employer has complied with clause 28A.

**28A.2** In clause 28A:

- (a) **employer** means the employer of the workplace delegate;
- (b) **delegate's organisation** means the employee organisation in accordance with the rules of which the workplace delegate was appointed or elected;
- (c) **eligible workers** means members and persons eligible to be members of the workplace delegate's organisation who work in a particular enterprise.

**28A.3** Before exercising entitlements under clause 28A, a workplace delegate must give the employer written notice of their appointment or election as a workplace delegate. If requested, the workplace delegate must provide the employer with evidence that would satisfy a reasonable person of their appointment or election.

**28A.4** An employee who ceases to be a workplace delegate must give written notice to the employer within 14 days.

### **28A.5 Right of representation**

A workplace delegate may represent the industrial interests of eligible workers who wish to be represented by the workplace delegate in matters including:

- (a) consultation about major workplace change;
- (b) consultation about changes to rosters or hours of work;
- (c) resolution of disputes;
- (d) disciplinary processes;
- (e) enterprise bargaining where the workplace delegate has been appointed as a bargaining representative under section 176 of the [Act](#) or is assisting the delegate's organisation with enterprise bargaining; and
- (f) any process or procedure within an award, enterprise agreement or workplace policy under which eligible workers are entitled to be represented and which concerns their industrial interests.

**28A.6 Entitlement to reasonable communication**

- (a) A workplace delegate may communicate with eligible workers in relation to their industrial interests under clause 28A.5. This includes discussing membership of the delegate's organisation and representation with eligible workers.
- (b) A workplace delegate may communicate with eligible workers during working hours or work breaks, or before or after work.

**28A.7 Entitlement to reasonable access to the workplace and workplace facilities**

- (a) The employer must provide a workplace delegate with access to or use of the following workplace facilities:
  - (i) a room or area to hold discussions that is fit for purpose, private and accessible by the workplace delegate and eligible workers;
  - (ii) a physical or electronic noticeboard;
  - (iii) electronic means of communication ordinarily used in the workplace by the employer to communicate with eligible workers and by eligible workers to communicate with each other, including access to Wi-Fi;
  - (iv) a lockable filing cabinet or other secure document storage area; and
  - (v) office facilities and equipment including printers, scanners and photocopiers.
- (b) The employer is not required to provide access to or use of a workplace facility under clause 28A.7(a) if:
  - (i) the workplace does not have the facility;
  - (ii) due to operational requirements, it is impractical to provide access to or use of the facility at the time or in the manner it is sought; or
  - (iii) the employer does not have access to the facility at the enterprise and is unable to obtain access after taking reasonable steps.

**28A.8 Entitlement to reasonable access to training**

Unless the employer is a small business employer, the employer must provide a workplace delegate with access to up to 5 days of paid time during normal working hours for initial training and at least one day each subsequent year, to attend training related to representation of the industrial interests of eligible workers, subject to the following conditions:

- (a) In each year commencing 1 July, the employer is not required to provide access to paid time for training to more than one workplace delegate per 50 eligible workers.
- (b) The number of eligible workers will be determined on the day a delegate requests paid time to attend training, as the number of eligible workers who are:
  - (i) full-time or part-time employees; or

- (ii) regular casual employees.
- (c) Payment for a day of paid time during normal working hours is payment of the amount the workplace delegate would have been paid for the hours the workplace delegate would have been rostered or required to work on that day if the delegate had not been absent from work to attend the training.
- (d) The workplace delegate must give the employer not less than 5 weeks' notice (unless the employer and delegate agree to a shorter period of notice) of the dates, subject matter, the daily start and finish times of the training, and the name of the training provider.
- (e) If requested by the employer, the workplace delegate must provide the employer with an outline of the training content.
- (f) The employer must advise the workplace delegate not less than 2 weeks from the day on which the training is scheduled to commence, whether the workplace delegate's access to paid time during normal working hours to attend the training has been approved. Such approval must not be unreasonably withheld.
- (g) The workplace delegate must, within 7 days after the day on which the training ends, provide the employer with evidence that would satisfy a reasonable person of their attendance at the training.

#### **28A.9 Exercise of entitlements under clause 28A**

- (a) A workplace delegate's entitlements under clause 28A are subject to the conditions that the workplace delegate must, when exercising those entitlements:
  - (i) comply with the reasonable policies and procedures of the employer, including reasonable codes of conduct and requirements in relation to occupational health and safety and acceptable use of ICT resources;
  - (ii) not hinder, obstruct or prevent eligible workers exercising their rights to freedom of association.
- (b) When exercising any entitlements under clause 28A, a workplace delegate must, other than in the reasonable exercise of those entitlements:
  - (i) comply with their duties and obligations as an employee; and
  - (ii) not hinder, obstruct or prevent the normal performance of work.
- (c) Clause 28A does not require the employer to provide a workplace delegate with access to electronic means of communication in a way that provides individual contact details for eligible workers.
- (d) Clause 28A does not require an eligible worker to be represented by a workplace delegate without the worker's agreement.

NOTE: Under section 350A of the [Act](#), the employer must not:

- (a) unreasonably fail or refuse to deal with a workplace delegate; or

**Nurses Award 2020**

- (b) knowingly or recklessly make a false or misleading representation to a workplace delegate; or
- (c) unreasonably hinder, obstruct or prevent the exercise of the rights of a workplace delegate under the [Act](#) or clause 28A.